SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Civil Appeal No. 8928 of 2015 **CNR: SCIN010089282015**

Date: 26 September, 2018 *Citation: (2018) 10 SCC 396*

CORAM: Hon'ble Dipak Misra, C.J., Kurian Joseph, R.F. Nariman, Sanjay Kishan Kaul,

Petitioner: Jarnail Singh & Others

- VERSUS -

Respondent: Lachhmi Narain Gupta & Others

DOMAIN: AFFIRMATIVE ACTION & CREAMY LAYER **STATUS: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The creamy layer principle applies to SCs and STs to ensure that the genuinely underprivileged receive affirmative benefits. The conclusion in Nagaraj requiring States to collect quantifiable data on backwardness of SC/STs is contrary to Indra Sawhney and is invalidated.

STATUTES APPLIED: Article 16(4A), Article 341, Article 342

DISPOSITION: CREAMY LAYER PRINCIPLE AFFIRMED FOR SC/ST PROMOTIONS

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench held that the State does not need to collect data on backwardness for SC/STs, but affirmed that the 'creamy layer' principle applies to exclude affluent SC/ST members from reservation in promotions.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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